

Law & Motion Tentative Rulings

September 24, 2026 8:30 a.m.

Tentative rulings are not posted in unlawful detainer cases.

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

Rose et al. v. Scarborough Lumber, et al. (24CV02298)

(Unopposed) Motion for Final Approval of Class Action and PAGA Settlement

The motion is granted and the court will sign the proposed order.

Based on the pleadings submitted, the settlement is entitled to a presumption of fairness and no evidence having been presented to overcome the presumption, the motion for final approval is granted.

Cowden v. Davidson (24CV02848)

Plaintiff/Cross-Defendant’s Motion to Set Aside Default

Plaintiff/cross-defendant’s motion is granted. While there is nothing in the court record to indicate plaintiff filed his motion, defendant/cross-complainant’s case management conference statement references a stipulation to set aside the default and allow plaintiff to file his answer to the cross-complaint.

Dickman et al. v. Rachelle’s Home III, Inc., et al. (25CV04183)

Defendant’s Demurrer

The demurrer to the eighth cause of action for negligent infliction of emotional distress (“NIED”) is sustained with leave to amend. Any amended pleading shall be filed no later than October 16, 2026.

I. INTRODUCTION

Plaintiffs are Dannie Dickman, his wife of 61 years Lois Dickman, and their daughter, Selia Grassadonia. They allege that defendants are responsible for elder neglect, premises liability, negligence (custodial), fraud, tort per se, intentional infliction of emotional distress, and NEID related to Dannie's care at defendants' elder residential care facility. Dannie, who suffers from Alzheimer's, was a patient at the facility for 17 days in September 2025. In that time, he suffered several unexplained injuries – a black eye, bruised cheek, and at least one serious fall, requiring surgery to repair his shattered hip and broken femur. (Complaint ¶¶ 19-26.)

II. LEGAL STANDARDS

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at p. 747.)

III. DISCUSSION

The elements of NIED are: (1) legal duty to use due care; (2) breach of such duty; (3) damages and injury; (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Store* (1993) 6 Cal.4th 124, 129.) Negligent infliction of emotional distress is divided into two claims, direct victim claims or bystander claims. (*Smith v. Pust* (1993) 19 Cal.App.4th 263, 273.) “[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress.” (*Thing v. LaChusa* (1989) 48 Cal.3d 644, 667-68.)

To recover on a bystander theory, the plaintiff must have perceived the injury-producing event through any senses and contemporaneously understood that the event was causing injury to a close relative. (*Bird v. Saenz* (2002) 28 Cal.4th 910, 916.) Meaningful comprehension of the injury-causing event is an essential component for recovery in bystander cases. (*Golstein v. Superior Court* (1990) 223 Cal.App.3d 1415, 1427 [no NIED cause of action where parents witness child's fatal overexposure to radiation during cancer treatment because radiation is invisible and cannot be perceived].) A plaintiff may establish a cause of action for NIED where the injury-producing event is the failure of a caregiver or medical provider to respond to symptoms obviously requiring immediate medical attention and the bystander is present to witness the failure to provide care and deterioration of the victim's condition over a period of time. (*Ochoa v. Superior Court* (1985) 39 Cal.3d 159, 170.) This is because the failure to provide medical assistance is not necessarily hidden from the understanding awareness of a layperson. (*Keys v. Alta Bates Summit Medical Center* (2015) 235 Cal.App.4th 484, 489.)

"[T]he plaintiff must be 'present at the scene of the injury-producing event at the time it occurs and ... then aware that it is causing injury to the victim.'" (*Golstein v. Superior Court, supra*, 223 Cal.App.3d at pp. 1427-1428, fns. omitted, quoting *Thing v. LaChusa, supra*, 48 Cal.3d at p. 668.) "We are reasonably certain the Supreme Court would not accept a conclusion which could apply [NIED] recovery almost automatically to a medical malpractice plaintiff who observes only the suffering of the victim and not the actual event that causes that suffering." (*Golstein v. Superior Court, supra*, 223 Cal.App.3d at p. 1427, fn. 3.)

Dannie's wife and daughter did not witness any of the events leading to the injuries. Instead, they allege they visited almost daily, were in constant communication, and contemporaneously perceived the consequences of defendants' neglect, indifference, and poor treatment of Dannie, while also witnessing him in extreme pain following the fall. (Complaint ¶¶ 81-85.) While these assuredly caused them distress, their allegations do not establish they witnessed the failure to provide care or failure to respond to symptoms that required immediate care. Therefore, the demurrer is sustained with leave to amend.

Shaffer et al. v. CA MOD General Construction, Inc. (25CV01960)

Defendant CA MOD General Constructions, Inc.’s Motion to Set Aside Default

The motion is granted. Defendant’s motion includes an attorney declaration of mistake. Defendant is ordered to file its responsive pleading no later than October 1, 2026.

I. INTRODUCTION

Plaintiff Jarrod A. Shaffer obtained a default judgment against defendant CA MOD General Construction, Inc. who now moves to set aside the judgment based on Code of Civil Procedure section 473, subdivision (b).

Timeline:

- 6/20/25 Plaintiff filed a complaint for breach of contract, breach of implied covenant of good faith and fair dealing, and fraud against defendant for its failure to properly and timely build plaintiff’s residential ADU; defendant is the sole defendant.
- 9/25/25 Order for service by publication granted based on four attempts at serving defendant at its Gilroy business address by registered process servers, and two attempts to communicate directly with defendant’s counsel, which were unanswered.
- 10/27/25 Proof of publication in the San Jose Mercury News filed.
- 3/26/26 Default judgment entered by the court.
- 6/29/26 Defendant filed this motion asserting its attorney mis-calendared by one year (10/28/26 instead of 10/28/25) a follow up with plaintiff’s counsel, and that she had an unexpected hospitalization which prevented her from filing this motion sooner.

III. DISCUSSION

Defendants’ motion is based on Code of Civil Procedure section 473, subdivision (b), mistake, inadvertence, surprise or excusable neglect. Defense counsel states she and plaintiff’s counsel have a professional relationship via plaintiff’s other related civil case, no. 24CV03204 (arbitration against defendant for the same building). Due to AAA’s new policy requiring parties to waive consumer arbitration rules in all construction cases, and defendant’s refusal to do so, that action could not proceed in arbitration because AAA refused to proceed.

The moving party bears the burden of proving they are entitled to relief under section 473, subdivision b. The court is empowered to relieve a party “upon any terms as may be just ...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (§ 473, subd. (b).) Any party to the

action or his or her legal representative may seek relief under section 473, subdivision b and relief is mandatory when it is based upon an attorney affidavit of fault.

Defense counsel declares that she mis-calendared by one year a follow-up date to contact plaintiff's counsel. The parties had been involved in another action, and plaintiff's counsel sought defendant's signature on a satisfaction of judgment in that other matter. Defense counsel needed to obtain authority from her client, but he was dealing with a family matter and she decided to reach out to him after the high holidays. She believed she calendared the follow up for October 28, 2025, but instead it was mis-calendared for 2026. (Levy Declaration.)

"The law favors judgment on the merits. Thus, on a motion or relief from default, 'doubts must be resolved *in favor of relief*, with an order denying relief scrutinized on appeal more carefully than granting it.'" (*Lasalle v. Vogel* (2019) 36 Cal.5th 127, 134.) Relief is proper under section 473, subdivision (b) where defendant (or their attorney) was mistaken as to some fact material to the defendant's duty to respond. "[W]here the defendant, with full knowledge of the proceedings, and without being misled by the opposing party or counsel, fails to take action to protect his interests until after the default, it is an abuse of discretion to set the default aside. [Cit. omitted.] Nor does the trial court have the legal power to set aside the default simply because the defendant did not realize the legal effect of failing to file an answer." (*Yarbrough v. Yarbrough* (1956) 144 Cal.App.2d 610, 615.)

Defendant's papers establish an attorney mistake. Despite plaintiff's opposition and lengthy history of dealing with defense counsel in the arbitration matter, it is apparent that the merits of plaintiff's claims should be reached (since the arbitration did not proceed). The motion is granted and defendant is ordered to file its responsive pleading no later than October 1, 2026.

Tsai v. Patricio (25CV04107)

Plaintiff's Motion to Compel Further Responses

The motion is denied without prejudice, as discussed below, because there is no proof plaintiff met and conferred with defendant over the responses at issue before filing this motion.

On May 5, 2026, plaintiff served four sets of discovery on defendant (form and special interrogatories, set one; request for production of documents, set one; and requests for admission, set one). (Decl. of Chin at ¶¶ 5-7.) Initially defendant did not respond to the requests, and plaintiff filed a motion to compel responses on June 16, 2026. However, before the motion was

heard, the parties met and conferred, and defendant served amended responses on July 22, 2026. (Decl. of Qiu at ¶ 6.) On August 7, 2026, plaintiff amended this motion to seek further responses to Form Interrogatory 17.1 as it relates to requests for admission nos. 9-11, 14, 16-17, and 20-33, as well as sanctions in the amount of \$1,100.00 against defendant.

Plaintiff asserts the amended, verified responses are inadequate. A motion to compel further responses pursuant to Code of Civil Procedure section 2030.300, subdivision (a) “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code of Civ. Proc. § 2030.300, subd. (b).) Here, the parties met and conferred on defendant’s original responses to the discovery requests, but there is no proof of meet and confer efforts after defendant served his amended responses on July 22, 2026, before plaintiff amended his motion.

Moe et al. v. Krassow, et al. (CV172949)

Plaintiffs’ Motion to Enforce Settlement Agreement (CCP § 664.6)

The parties are ordered to appear. The Court intends to afford plaintiffs more time to determine if the mediation record from 2013 shows that the parties invoked the court’s retained jurisdiction over the settlement. In the meantime, the parties are ordered to meet and confer to determine if this matter can be amicably resolved.

This case resulted from plaintiffs’ 2006 purchase of real property on Ocean Street Extension from defendants with the intention of building residential housing. Plaintiffs discovered they could not build the project due to the adjacent crematory owned by defendants. The parties settled in 2013 following litigation, with defendants agreeing to move and discontinue using the crematory in 2014. The City of Santa Cruz approved a permit for relocation of the crematory, but neighbors objected to the project. The parties entered into an amended agreement, requiring defendants to cease cremating corpses with amalgam fillings. Eventually, the neighbors’ lawsuit was not an impediment to the project and the parties agreed that defendants were required to move the crematory and discontinue using it. (Moe Declaration; DiBenedetto Declaration, Exhibits A and B.)

“A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the

court's factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to enter judgment pursuant to the terms of the settlement.” (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182, citations omitted.)

“A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts.” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.) An essential element of any contract is mutual consent. (*Id.* at 811.) The parties executed a Memorandum of Settlement and an Amendment to Conditional Settlement and Release of All Claims. (DiBenedetto Decl., Exs. A and B.) They agreed to be bound by its terms; “[i]t is now the desire and intention of the parties to enter into a conditional settlement, the basic concept of which is that Defendants will move the crematory to a new location adjacent to the existing business operated by Defendants, as referenced in the May 24, 2013 Health Risk Assessment for Santa Cruz Crematory prepared by the Monterey Bay Unified Air Pollution Control District” and “it is now the desire and intention of the parties to modify the Agreement to provide that the Defendants shall discontinue cremation of any corpses containing amalgam fillings,....” (DiBenedetto Decl., Ex. A., § F, and Ex. B., § F.)

The parties expressly agreed that the court retained jurisdiction pursuant to section 664.6 in their Amendment to Conditional Settlement. (DiBenedetto Decl., Ex. B, § 4.)

Defendants filed a Special Appearance in Opposition four court days late. They argue this case has been dismissed with prejudice and therefore the court lacks jurisdiction to grant the motion. (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 437.) Specially-appearing defendants contend that plaintiffs failed to invoke section 664.6 before dismissal. (*Id.* at p. 439-440.) Citing *Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 918, defendants insist that the parties did not comply with the strict statutory requirements of section 664.6 in effect at the time of settlement and therefore this court did not retain jurisdiction. The *Mesa RHF Partners, L.P.* court ruled that since the settlement agreement which invoked the court's retained jurisdiction was never presented to the court as a stipulation and order (rather, counsel merely presented a dismissal form), the parties never presented their invocation of section 664.6 to the court as required prior to dismissal. (*Ibid.*)

Plaintiffs' reply seeks more time to find the record of the 2013 mediation, if it still exists, to determine if the parties invoked section 664.6 at the time of settlement. (DiBenedetto Supp. Decl., Ex. 2.) The Court will afford them some time to accomplish that, and will set a continued hearing date and deadlines for short supplemental briefing.

Marani-Schwartz v. Riccabona, et al. (24CV02073)

Defendant Victor A. Marani's Motion to Expunge and Cancel Notices of Pendency of Action and for Attorneys' Fees and Costs

The motion is granted.

I. INTRODUCTION

Plaintiff Elizabeth Marani-Schwartz filed this action against her family members in July 2024. Her second amended complaint, filed November 17, 2025, alleges causes of action for negligence, fraud, cancellation of instrument/quiet title, financial elder abuse, partition, slander of title, and partition of real property by sale and accounting. Defendants are Donna Vairo (plaintiff's mother), Robert J. Marani (plaintiff's brother), Victor Marani (plaintiff's brother) and Rebecca Riccabona (plaintiff's sister). Plaintiff contends her mother Donna forged or fraudulently induced her to sign a 1998 grant deed transferring the property from Donna's children (Robert, Victor, Rebecca, and Elizabeth) to herself. Plaintiff alleges a decades-long undue influence scheme by her siblings against their mother in order to swindle plaintiff out of her rightfully owned interest in the property.

This action concerns Santa Cruz County real properties: 1) 783 Rio Del Mar Boulevard, Aptos, California 95003, Assessor's Parcel No. 044-011-45; and 2) 746 Club House Drive, Aptos, California 95003, Assessor's Parcel No. 044-341-01. The properties are held by Deer Park Orchard & Vineyard, LLC. Donna Vairo is the sole member of Deer Park Orchard & Vineyard, LLC, and Rebecca Riccabona serves as its manager. (Declaration of Rebecca Riccabona ("Riccabona Decl.") ¶¶ 2-5.) Plaintiff is Donna Vairo's daughter and Victor Marani's sister. Plaintiff is not identified as a grantee or owner in the current recorded chain of title and has never possessed, managed, maintained, or paid expenses associated with either property. (Riccabona Decl. ¶¶ 6-11.)

Defendant Victor Marani individually and in his capacity as a successor trustee and trustee moves for an order:

- Expunging, cancelling, and removing from title the Notice of Pendency of Action recorded on October 6, 2023 (“Notice 1”), affecting the real property known as 783 Rio Del Mar Boulevard, Aptos, CA, APN 044-011-45;
- Expunging the Notice of Pendency of Action recorded on July 23, 2024 (“Notice 2”), affecting the real property identified as Assessor’s Parcel Nos. (“APN”) 044—011-45 and 044-341-01;
- Awarding Marani attorneys’ fees and costs of \$8,392.50 incurred in bringing this motion.

II. LEGAL STANDARDS

A court shall order a notice of lis pendens expunged if it determines (1) that the pleading on which the notice is based does not contain a real property claim (Code Civ. Proc., § 405.31); (2) that the claimant has not established, by a preponderance of the evidence, the probable validity of a real property claim (Code Civ. Proc., § 405.32); or (3) that adequate relief can be secured by an undertaking (Code Civ. Proc., § 405.33). (*Shoker v. Superior Court of Alameda County* (2022) 81 Cal.App.5th 271, 278.) “Unlike most motions, the party opposing a motion to expunge bears the burden to show the existence of a real property claim.” (*J&A Mash & Barrel, LLC v. Superior Court of Fresno County* (2022) 74 Cal.App.5th 1, 33.)

Defects in statutory service and filing requirements are ground for expungement. (Code of Civ. Proc. § 405.23; *McKnight v. Superior Court* (1985) 170 Cal.App.3d 291, 303.) Code of Civil Procedure section 405.23 provides:

“Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action.”

Code of Civil Procedure section 405.22 requires the claimant, before recordation, to mail the notice by registered or certified mail, return receipt requested, to all known addresses of the adverse parties and owners of record.

III. DISCUSSION

Here, plaintiff has not demonstrated compliance with the statutory service and filing requirements. First, Notice 1 identifies a Placer County proceeding that that court cannot locate, and plaintiff has identified no pending pleading in that proceeding asserting a real property claim. (Mohamed Declaration, ¶¶ 11-12.) If no qualifying action or claim was pending when the

notice was recorded, the notice was unauthorized under section 405.20, is void, and is subject to expungement. Second, both notices include various defects: they fail to state that return receipt service was requested, display long time gaps between when the proofs of service were executed and then served, fail to show service on the owner of record (Deer Park Orchard & Vineyard, LLC), and fail to conform with proof requirements under Code of Civil Procedure section 1013a. Plaintiff concedes these defects. (Opposition p. 13; Schwartz Decl., ¶ 3.) Defendant Victor Marani's eventual actual notice of the *lis pendens* does not waive defendants' objections to these fatal procedural defects. (*Rey Sanchez Investments v. Superior Court* (2016) 244 Cal.App.4th 259, 264-265.)

Further, plaintiff is unable to establish probable validity of her real property claim. She conveyed her interest in 1998. Even though she alleges her signature was fraudulently induced, her "evidence" is at best conflicting and at worst not credible. She claims first that she did not sign the 1998 deed, then declares if she did (which she doubts) she did so at the direction of her brother Robert who was handling the probate matters related to their father's estate. (Marani-Schwartz Decl., ¶¶ 6-7.) Plaintiff also concedes she's never held a recorded interest in the property following the challenged transfers because she was allegedly wrongfully excluded from ownership via this fraudulent scheme. (Marani-Schwartz Decl., ¶ 17.) The Court finds plaintiff's declaration includes her conclusory opinions only, not evidence.

Therefore, the Court grants the motion.

As prevailing party, defendant is entitled to recover attorneys' fees and costs incurred in connection with this motion unless the Court finds the responding party acted with substantial justification or circumstances make an award unjust. (Code Civ. Proc., § 405.38.) Defendant seeks \$8,392.50 (22.7 total and anticipated hours by four different attorneys at hourly rates of \$135.00, \$350.00, \$375.00, and \$500.00). The Court finds defendant's request is excessive and instead grants \$1,560.00.00 in fees and costs related to this motion (four hours at \$375.00 plus \$60.00 in filing fees). Plaintiff Elizabeth A. Marani-Schwartz shall pay that amount to defendant Victor A. Marani no later than October 23, 2026.

Defendant's requests for judicial notice of the recorded Notices of Pendency of Action (Exhibits A and B) are granted.

Plaintiff's 14 objections to the Declaration of Rebecca Riccabona are overruled, as are her 11 objections to the Declaration of Aaron Mohamed.

Plaintiff's opposition exceeded the page limit and failed to include tables. Counsel is cautioned that sanctions may be imposed, or his papers will be treated as late-filed papers, in the event any future papers fail to conform to Cal. Rules of Court, rules 3.1113(d) and (f).

Marani v. Soquel Care, LLC., et al. (26CV00936)

Defendants' Petition to Compel Arbitration

The motion is continued to October 27, 2026.

Plaintiff Victor Marani filed this action in his name as the "legal representative" for Donna Vairo, his mother, a dependent adult. The complaint alleges elder neglect and negligence (W&I Code § 15600 et seq.). Defendant Soquel Care LLC, dba Redwood Grove Post Acute is a long-term care and post-acute care skilled nursing facility. Defendants Scott Suchomel and Joshua Nichol are the owner-operators of Redwood Grove. (Compl. at ¶ 1.) Plaintiff alleges that Donna Vairo ("Vairo") was admitted to Redwood Grove as a patient and was sexually assaulted by another resident.

Defendants seek to compel arbitration and stay this action, asserting there is a valid arbitration agreement which was entered into at the time Vairo was admitted. Rebecca Riccabona, Vairo's daughter, who has a general power of attorney and durable power of attorney for healthcare of Vairo, allegedly signed the arbitration agreement on behalf of Vairo. Plaintiff opposes the petition to compel arbitration.

Before deciding the merits of the Petition, the Court orders plaintiff provide briefing regarding his standing to bring this action on behalf of his mother. He is not alleged to be the real party in interest, the conservator, nor the guardian ad litem; he does not hold the power of attorney. Plaintiff is to file his briefing by October 13, 2026; defendants to file a response by October 19, 2026.